



## SERVICES AGREEMENT

### BETWEEN

**GIG LOGISTICS LTD,**  
*A SUBSIDIARY OF*  
**GIG GROUP,**

*PLOT 1, BLOCK 28, REMI OLOWUDE STREET,  
OFF LEKKI 2<sup>nd</sup> ROKUNDABOUT,  
LEKKI PHASE 1, LAGOS.*

And

**Company Name:** .....

**Office Address:** .....

.....

**Email:** .....

**Contact Person:** .....

**TEL:** ...../.....

**THIS AGREEMENT** is made this .....day of ....., 2018.

## **BETWEEN**

**GIG LOGISTICS LIMITED** a Limited Liability Company incorporated under the laws of the Federal Republic of Nigeria with its business address at *plot 1, Block 28, Remi Olowude Street, By 2nd Roundabout, Lekki Phase 1, Lagos*. (Hereinafter referred to as “GIGL” which expression shall except where the context so admits include its successor-in-title and assigns) of the one part;

## **AND**

....., a firm incorporated under the laws of the Federal Republic of Nigeria and with its registered office at ..... (Hereinafter referred to as the “Company” which expression shall where the context so admits include its successors-in-title and assigns) of the other part.

## **WHEREAS**

1. **GIGL** is a company licensed to render courier/ Logistics support services with links to numerous locations within the country.
2. The Company is (*Nature of Business*) .....
3. The Company has contracted **GIGL** for the delivery of its packages, which **GIGL** has accepted in accordance with the terms and conditions hereinafter set out towards establishing a mutually beneficial relationship.

## **NOW THE PARTIES HEREBY AGREE** as follows:

### **1. Definitions**

In this Agreement, unless the context otherwise requires, the following terms shall have the following definitions:

- 1.1. “**Agreement**” shall mean this Agreement, together with all the terms and conditions set out in it and agreed upon in writing by both Parties.
- 1.2. “**Dangerous Shipments**” shall mean any item that is dangerous, corrosive, noxious, hazardous, inflammable or explosive goods or any goods, which in GIGL’s opinion are likely to cause damage. This includes but is not limited to gases, flammable liquids, flammable solids, oxidizer and organic peroxide, poisonous and infectious substances, radioactive material, corrosive material.
- 1.3. “**Effective Date**” shall mean ..... day of ....., 2018.
- 1.4. “**Force Majeure**” shall have the meaning set out in Clause 13.

- 1.5. **“Packages”** shall mean customers correspondence, parcels or packages, documents, (excluding cash).
- 1.6. **“Parties”** shall mean The Company and GIGL who severally/individually shall be referred to as “Party”.
- 1.7. **“Payment on Delivery”** shall mean any payment that is collected on behalf of the Company by GIGL at the point of delivery of the Packages to the customers.
- 1.8. **“Proof of Delivery”** shall mean documentary evidence that packages have been delivered to their designated destination.
- 1.9. **“Return Tariff Charge”** shall mean ~~N{-----}~~ This sum is not fixed and shall be subject to periodic review and revision by GIGL.
- 1.10. **“Term”** shall mean the Effective Date of this Agreement and unless sooner terminated in accordance with the relevant provisions herein shall continue in force for a period of One (1) years thereafter.
- 1.11. **“The Services”** shall mean conveying of Packages to various locations within the country.
- 1.12. **“Way Bill”** shall mean a form issued by GIGL to The Company as evidence of packages to be delivered to specific destinations.
- 1.13. **“Working Day”** shall mean between the hours of 6.00 am to 6.00 pm. Mondays to Saturdays (excluding Public Holidays declared by the Federal Government of Nigeria).
- 1.14. **“Working Week”** shall mean Monday to Friday (excluding Public Holidays declared by the Federal Government of Nigeria).
- 1.15. **“Head Office”** shall mean The Company's registered office at .....

## 2. Interpretation

Clause headings in this Agreement are used for reference purposes only and shall not affect their interpretation.

## 3. Tenor

This Agreement shall come into force from ..... Day of ....., 2018 and shall be valid for a period of one (1) year and may be renewed for a further term or terms, upon such new terms and conditions signed by both Parties.

## 4. Obligations of GIGL

- 4.1. GIGL shall ensure that all Payments on Delivery collected during the Working Week shall be delivered to the Company every Tuesday of the following week.
- 4.2. GIGL shall be responsible for the delivery of the Company's package in conjunction with duly authorized representatives of the Company who have been authorized to liaise with it.

- 4.3. GIGL shall provide platform for recording, sorting, transporting and other facilities needed for delivery of the Company's Packages.
- 4.4. GIGL shall comply with all applicable information and security policies and procedures of The Company as they concern package delivery. Details to be communicated to GIGL, prior to the commencement of the Term. Where such information is not provided in accordance with this clause, GIGL shall not be held responsible for its contravention.
- 4.5. GIGL shall process the shipments by sorting, documenting, routing and delivering in line with specific instructions or operational routine.
- 4.6. GIGL shall ensure that mails and parcels of the Company are handled with care, diligence and delivered at the point of delivery indicated thereon in the state and manner in which the Company consigned them within the shortest possible time.
- 4.7. GIGL shall ensure that any information to which it is privy in the course of fulfilment of its obligations hereunder are kept confidential and not disclosed to any person or authority, excluding staff and other persons connected with GIGL or its parent company, without the prior consent of the Company, save where it is so obliged by law.
- 4.8. GIGL shall ensure good conduct and ethical practices at all times and are in line with global best practices.
- 4.9. GIGL shall appoint a designated GIGL staff that shall be responsible for the coordination of the relationship with The Company's staff.

## **5. Obligations of The Company**

- 5.1. The Company shall pay **GIGL** on or before the 7<sup>th</sup> day of the month fees for services rendered from the 1<sup>st</sup> day to the last day of the previous month further to submission of invoice on the last day of each month by **GIGL**.
- 5.2. The Company shall ensure that the consigned shipments are properly marked, sealed and addressed, and that the contents are legal and accurately described on the waybill executed in respect of it.
- 5.3. The Company shall advise GIGL on specific pick-ups outside routine arrangements as may be agreed from time to time, give instructions to pick-up and deliver the packages through authorized designated staff of the Company.
- 5.4. The Company shall ensure that all shipments are not dangerous to health and can be handled in the ordinary course of business.
- 5.5. The Company shall be liable to GIGL for all losses and damages to GIGL or any third party arising from the handling of Dangerous Shipment.
- 5.6. The Company warrants that the shipment is not prohibited by law or dangerous and indemnifies GIGL against any claims and damages which GIGL or any third parties may suffer in the event of breach.

## **Registration Deposit**

- 5.7. The Company shall be required to pay GIGL the sum of **N50, 000.00** (Fifty Thousand Naira) (the “Registration Deposit”) prior to the commencement of the Services.
- 5.8. Any amount left in GIGL account shall be refunded upon termination of this Agreement save where the termination is at the instance of GIGL pursuant to Clauses 7.5 and 11.2.2 in which instance the Company shall forfeit the Refundable Deposit.
- 5.9. In the event that the Company fails to remit any outstanding payment in accordance with Clause 7.4, GIGL shall be at liberty to set-off the outstanding payment against the amount left in the GIGL account and immediately suspend the provision of the Services.
- 5.10. In the event that GIGL suspends provision of the Services pursuant to Clause 6.3, GIGL reserves the right to keep such a suspension in place indefinitely until it receives the full value owed from the Company.

## **6. Consideration and Payment Terms**

- 6.1. The fees for the services shall be in the sum as agreed between the Parties and contained hereunder as detailed in schedule attached.
- 6.2. Except as otherwise stated, all payments under this Agreement shall be made in favor of GIG Logistics Ltd and shall represent net amounts and any other statutory deductions.
- 6.3. The prices stated herein shall be operative during the tenure of this Agreement.
- 6.4. GIGL shall submit monthly invoices to the Company on the last day of each service month. The invoice shall be submitted together with any relevant documentation as may from time to time be reasonably required by the Company. Payment shall be made by the Company by the 7th day of every month.
- 6.5. GIGL shall be entitled to terminate this Agreement or suspend the provision of the Services where the Company fails to remit payments due within seven (7) Working Days from the date of submission of the monthly invoice referred to in Clause 7.4.
- 6.6. Price review will be agreed to by both Parties in the event of an upsurge in prices of petroleum products, labour-related review of minimum wages, government taxes and levies, which are beyond the control of GIGL.

## **7. Inspection**

**GIGL** reserves the right to inspect the shipment without prior notice to the Company where it is required to do so by any law enforcement agency.

## **8. Return Shipments**

GIGL shall redeliver any Package that is not collected by the customer (“Return Item”) to the Company, and the redelivery of such Return Items shall be at the Return Tariff Charge.

## **9. Liability**

**GIGL** shall be liable for and hereby indemnifies the Company for the loss and damage to any Package. GIGL liability shall be limited to the cost of repair or replacement, and GIGL shall not be responsible for any incidental, ancillary or consequential damages as a result of the damage or loss of any Package.

## **10. Termination**

10.1. This Agreement shall terminate at the expiry of a year, excluding where it is renewed, in which case it shall expire at the end of the renewal term;

10.2. Notwithstanding any other provision of this Agreement, either Party shall be entitled to terminate this Agreement by giving 30 day written notice at any time to the other Party and which termination shall be effective immediately afterwards in the event:

10.2.1. Of any breach by either Party of any of the terms of this Agreement or which breach, if remediable has not been remedied fourteen (14) days after either Party shall have notified the other of the breach;

10.2.2. That the Company fails to remit payments due within seven (7) Working Days from the date of submission of the monthly invoice referred to in Clause 7.4.

10.2.3. Consistent and repeatedly poor quality of service delivery by GIGL or any delay in payment by the Company;

10.2.4. Of an event of Force Majeure which persists for a period of more than thirty (30) days;

10.2.5. That either party shall enter into any liquidation, call any meeting of its creditors or shall have a receiver or receiver manager of all or any of its undertaking or assets appointed, or shall suffer the appointment or the presentation of a petition for the appointment of an administrator or shall be deemed to be unable to pay its debts under the provisions of the relevant company legislation in Nigeria.

10.3. Termination of the Agreement for any reason provided in Clause 11.2 shall not prejudice any rights of either party, which have arisen on or before the date of termination.

## **11. Concessions**

11.1. The parties recognize that either of them may, in connection with the performance of its obligations under this Agreement, make a concession in writing to the other, such as where additional time is required by a party to perform its obligation, and which appears to vary the terms of this Agreement.

11.2. A concession made by any party on one occasion shall not be deemed or constructed to be a concession of its right to insist on any subsequent occasion on the full performance of the other party's obligation in accordance with the terms of this Agreement.

## **12. Force Majeure**

- 12.1. Neither party shall be liable for delay in performing or failure to perform any of the provisions of this Agreement due to any event constituting force majeure event. For the purpose of this Agreement, force majeure shall mean events or circumstances outside the reasonable control of either party to this Agreement which they could not have reasonably foreseen and guarded against and which by exercise of reasonable care and diligence they are unable to prevent including but not limited to Acts of God and natural disasters, outbreak of hostilities, riots, civil disturbances, the act of any government authority, fires, explosions, malicious damage, boycotts, strikes, lockout or industrial action of any kind.
- 12.2. Where any of the events described in clause 13.1 above occur, the party claiming relief shall give written notice to the other of the event causing the force majeure and thereafter the operation of this Agreement shall be suspended until such circumstances shall have ceased. Forthwith, upon the event ceasing to exist, the party relying upon it shall give written advice to the other of this fact.
- 12.3. In the event that the force majeure event continues for a period of more than thirty (30) days and substantially affects the commercial intention of this Agreement, the affected party shall have the right to terminate this Agreement upon written notice of such intention to terminate.

## **13. Waiver**

The failure of any party to exercise any right, or claim any remedy, contingent upon the default of the other party in performing any of its obligations under this Agreement, shall not be deemed or construed as a waiver of such right or remedy under this agreement.

## **14. Entire Agreement**

This Agreement constitutes and expresses the entire agreement and understanding between the parties. All previous discussions, promises, representations and understandings between the parties relating to this Agreement if any have been merged into this document. No amendment of this agreement shall be effective unless reduced to writing and signed by the parties.

## **15. Governing Law**

This Agreement and the relationship of the parties in connection with the subject-matter of this Agreement shall be governed and determined in accordance with the Laws of the Federal Republic of Nigeria.

## **16. Severability**

If any term or provision of this Agreement is determined to be illegal, unenforceable, or invalid in whole or in part for any reason, such illegal unenforceable, or invalid provision(s) or part(s) thereof shall be stricken from this Agreement and such provision(s) shall not affect the legality, enforceability, or validity of the remainder, to the extent possible, with a legal, enforceable, and valid proviso that is as similar in tenor to the stricken provision as is legally possible.

## 17. Dispute Resolution

- 17.1. The Parties shall use their best endeavours to settle any dispute or difference of opinion between them, arising from or in connection with this Agreement amicably through discussion.
- 17.2. If the Parties are unable to resolve the dispute through mutual discussion, the dispute or difference of opinion mentioned in Clause 18.1 above shall be referred to mediation conducted by their legal representatives or financial auditors, where financial matters are involved failing which the dispute shall finally be referred to arbitration in accordance with the Arbitration and Conciliation Act Cap. A18 Laws of the Federation of Nigeria, 2004, by one arbitrator appointed by the President of the Chartered Institutes of Arbitrators (UK) Nigeria Branch. The arbitral award shall be final and binding between the Parties.
- 17.3. The place of arbitration shall be the city of Lagos, Lagos State, Nigeria or any other place more suitable within Nigeria as may be agreed between the Parties in line with the circumstances of the dispute.
- 17.4. This clause shall survive the termination of this Agreement, and shall accordingly apply at all times to disputes and differences of opinion existing or arising between the parties hereto, concerning this Agreement or any matter hereunder.

## 18. Notices

Any notice to be given under or in connection with this Agreement, shall be deemed to have been properly given by a party if it is delivered by hand (including Commercial courier) e-mail or sent by facsimile to the other Party, at the address or Telephone numbers given below;

**To: (The Company)** .....

**Address:** .....

**Attention:** .....

**Email Address:** .....

**To: GIG LOGISTICS LIMITED.**

**Address:** 1, Wole Ariyo Street, Off Admiralty Way, Lekki Phase 1, Lagos.

**Attention:** Ojona Odafe

**Email Address:** Ojana.odafe@giglogistics.ng



**IN WITNESS WHEREOF** the parties hereto have caused the Agreement to be executed in three (3) Counterparts by their duly authorized representatives as the day and year first above written.

**IN WITNESS WHEREOF**, the Parties have executed this Agreement the day and year written above.

The Common Seal of the within named

**“The Company”**

Is hereunto affixed in the presence of

**DIRECTOR..... DIRECTOR/SECRETARY.....**

The Common Seal of the within named

**GIG LOGISTICS LTD.**

Is hereunto affixed in the presence of

**DIRECTOR..... DIRECTOR/SECRETARY.....**

**“THE COMPANY” BANK ACCOUNT DETAILS**

**ACCOUNT NAME: .....**

**ACCOUNT NUMBER: .....**

**BANK: .....**